Seminar 7 — Conditions for Environmental-Governance Success

IR227 Politics of Change

July 2026

What you'll do in 90 minutes

[Bridge to seminar] *Take your assigned environmental-governance case. Apply the conditions-for-success checklist. Identify what's present, what's missing. Deliver a status verdict. Then a brief reflection: what does this case tell us about the climate-governance challenge in Lecture 9?*

- Six cases, three pairs, deliberately paired.
- Each group: 3–4 students, one case.
- Conditions assessment, then drafting, then plenary.

Three methodological points up front

1. "Epistemic community" is more than scientific consensus. Network + shared norms + policy-connectedness. (Haas 1992)
2. Industry is a variable, not just an opponent. Some firms benefit from regulation. (Kennard 2020)
3. The conditions vary in centrality across cases. Identify the binding constraint.

Six cases, three pairs

Pair archetype	Case A	Case B
International atmospheric	Montreal Protocol + Kigali	Minamata Mercury Convention
Market-based emissions	US Clean Air Act SO2	EU ETS
Unfavourable conditions	UN Plastic Treaty (2022–25)	CBD / BBNJ Treaty

Within each pair: same archetype, different conditions or stage of regime-building. (World Bank 2025; Young 2011)

Recap: the conditions checklist

Framework: Conditions for success

1. Scientific consensus + epistemic community. (Haas 1992)
2. Concentrated industry / actors.
3. Available technological substitutes.
4. Asymmetric costs favouring cooperation.
5. Distributional mechanisms.
6. Institutional design (monitoring, verification, enforcement). (Young 2011)
7. Political leadership.

Recap: industry as variable

- Naive view: industry is monolithically opposed to environmental regulation.
- Empirical reality: firms strategically lobby *for* environmental regulation when they are advantaged by it. (Kennard 2020)
- Examples: USCAP coalition pre-2009 (BP, Duke Energy, Caterpillar, GE); aluminium-industry support for carbon-border adjustments; DuPont's 1988 CFC phase-out announcement.
- Implication: identify and empower the pro-regulation firms.

Phase 1 — conditions assessment (20 min, no laptops)

For each of the seven conditions:

1. Identify whether it is present, partially present, or absent.
2. Defend the verdict with evidence from the case extract.
3. Reach a status verdict — succeeding, partially succeeding, or stalled — and identify the binding constraint: the missing or unfavourable condition that most explains it.

Output: a sentence per condition, a status verdict, and the binding constraint — something you can defend and will report to the class.

Phase 2 — draft your briefing (15 min, Claude allowed)

Case: Diagnostic memo

- One paragraph: conditions-and-status memo. Conditions verdicts, binding constraint, status verdict.
- Two-to-three sentences: climate reflection. What specific implication does this case have for the climate-governance challenge in Lecture 9?

Be specific. "Useful for thinking about climate" is not a reflection.

Phase 3 — exchange briefings (5 min)

- Swap your written briefing with your comparative-case group (same pair archetype, paired case).
- Read their conditions verdicts, binding constraint, and status verdict.
- Note one point of contrast to raise in the plenary: same archetype — why does the verdict differ?

Phase 4 — present (5 min per group)

Each group presents its own verdict, then names the contrast with its comparative case.

- International atmospheric: Montreal+Kigali vs. Minamata — same archetype, different conditions. Why?
- Market-based emissions: US SO2 vs. EU ETS — same instrument-type, different scale and design lessons. Why?
- Unfavourable conditions: Plastic Treaty vs. CBD/BBNJ — both have weak conditions; one is stalled, one is partially advancing. Why?

Three things to take away

1. The conditions checklist is a diagnostic, not a recipe. Identify which conditions matter most in each case.
2. Industry is a variable, not just an opponent. Identify and empower pro-regulation firms. (Kennard 2020)
3. The climate-governance challenge (Lecture 9) has unfavourable conditions across most dimensions. The diagnostic identifies where to invest political and design effort.

Tomorrow: digital governance — a transition where institutional infrastructure is still being built.

References i

Haas, P. M. (1992). **"Introduction: epistemic communities and international policy coordination".** In: *International Organization* 46.1, pp. 1–35.

Kennard, A. (2020). **"The Enemy of My Enemy: When Firms Support Climate Change Regulation".** In: *International Organization* 74.2, pp. 187–221.

World Bank (2025). **State and Trends of Carbon Pricing 2025.** Tech. rep. License: CC BY 3.0 IGO. Washington, DC: World Bank.

Young, O. R. (2011). **"Effectiveness of international environmental regimes: Existing knowledge, cutting-edge themes, and research strategies".** In: *Proceedings of the National Academy of Sciences* 108.50, pp. 19853–19860.